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No.

10 - Alla Anatolyevna Zorikova v. Victoria Murcia, et al.

Defendants Victoria Murcia and Luis

Hidalgo's Motion for Terminating Sanctions Against Plaintiff

Defendants

Victoria Murcia and Luis Hidalgo move for terminating sanctions against Plaintiff

Alla Anatolyevna Zorikova for failure to comply with several court orders. In the alternative, Defendants move for issue and monetary sanctions.

Background

This

is Defendants' second motion for terminating sanctions. It addresses Plaintiff's repeated noncompliance with several court rulings ordering her to provide witness contact information.

This

specific discovery dispute began over a year ago. On May 7, 2025, the Court ordered Plaintiff to provide further responses to several of Defendant Murcia's special interrogatories. (Miretsky Decl., ¶ 2, Ex. A.) Specifically, SPROG no. 26 requested witness contact information. The Court found: "This request seeks discoverable information. Plaintiff cannot refuse to provide the contact information of witnesses or require that certain witnesses be contacted only through her." (Id., at p. 4.)

On

July 7, 2025, the Court granted Defendant Murcia's motion to compel Plaintiff's attendance at her deposition. (Miretsky Decl., ¶ 3, Ex. B.) The Court ordered Plaintiff to answer the 18 deposition questions identified in the motion, which included four questions requesting contact information for Olivia Jeong. (Ibid.) Following this order, Plaintiff refused to provide accurate contact information for witnesses in her deposition. (Id., ¶ 4.) For example, during the deposition, Plaintiff provided only a shared business email address for witness Olivia Jeong and one telephone number. (Miretsky Decl., ¶ 3, Ex. C, Pl. Depo. 81:5-82:4) When Defense counsel called the phone number during a break, Plaintiff answered the phone. (Miretsky Decl., ¶ 4.) Plaintiff stated that she knew Jeong's personal phone number but would "[a]bsolutely not" provide it because Jeong had not given her permission. (Miretsky Decl., ¶ 3, Ex. C, Pl. Depo. 102:24-104:6.) Further, Plaintiff admitted she knew witness Jocelyn Lew's phone number, but refused to provide it because Lew had not given her permission. (Id., 87:14-23.)

The

Court heard Defendants' first motion for terminating sanctions on April 14, 2026, which addressed this discovery issue, among other things. The Court declined to issue terminating sanctions at that time, but ordered Plaintiff to provide contact information for witnesses Olivia Jeong and Jocelyn Lew and imposed monetary sanctions. Specifically, the Court found: "To the extent Plaintiff continues to withhold witness contact information, the Court hereby orders Plaintiff to give contact information for Olivia Jeong and Jocelyn Lew to Defendants immediately. Further failure to comply with the Court's orders regarding contact information could result in the exclusion of witnesses from trial and/or an appropriate jury instruction regarding presumptions to be afforded to testimony from those two witnesses." (4/16/26 Minute Order, at p. 4.)

Defendants attest that Plaintiff has still failed to provide the contact information. (Miretsky Decl., ¶ 11.) When asked to provide the information again via email, Plaintiff merely gave a previously identified mailing address, and stated that both witnesses must be contacted via mail only. (Id., Ex. I, at pp. 1-2.) Plaintiff repeats this in her opposition brief. (Opp., at pp. 3-4.)

Sanctions

CCP

§ 2023.030(d) permits courts to impose terminating sanctions against a party

for misuse of the discovery process. Misuse of the process includes “[f]ailing to respond or to submit to an authorized method of discovery” (CCP § 2023.010(d)) and “[d]isobeying a court order to provide discovery” (CCP § 2030.010(g)).

Courts

“may impose a terminating sanction” by “striking out” pleadings. (CCP § 2023.030(d)(1).) Discovery sanctions should be imposed incrementally, “starting with monetary sanctions and ending with the ultimate sanction of termination.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.)

The

Court has reviewed the file and declines to award terminating sanctions. While the Court acknowledges that Plaintiff has improperly refused to provide relevant witness contact information for more than a year in willful disobedience of Court orders, awarding issue sanctions is the most appropriate form of sanctions at this stage. “[A] terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Ibid.) Terminating sanctions are “ ‘ordinarily a drastic measure which should be employed with caution.’ ” (McArthur v. Bockman (1989) 208 Cal.App.3d 1076, 1080.)

The

Court will impose the following issue sanctions, with the following facts deemed admitted and not subject to contest at trial:

1. That, on the date of the incident, Plaintiff was a canine professional specializing in sale and placement of German Shepherds trained as protection dogs.
2. That, on the date of the incident, Plaintiff had an ownership interest in Personal Protection Dogs, LLC which did business as Personal Protection Dogs and Puppies.
3. That Personal Protection Dogs and Puppies was in the business of training and selling trained dogs.

4. That

Plaintiff's encounter with Defendants and their dogs was in the course of her professional capacity for Personal Protection Dogs and Puppies.

5. That

Plaintiff has refused, despite Court orders, to provide telephone numbers and email addresses for potential witnesses Olivia Jeong and Jocelyn Lew, who are affiliated with Personal Protection Dogs and Puppies. As such, those witnesses will be precluded from testifying for Plaintiff at trial, and the Court will presume that their testimony was adverse and damaging to Plaintiff's position.

The Court

declines to award further monetary sanctions.

Disposition

Defendants Victoria Murcia and Luis

Hidalgo's motion for terminating sanctions against Plaintiff is granted in part as to issue sanctions only. At trial, the Court will treat the following issues as having been established for purposes of trial:

1. That, on

the date of the incident, Plaintiff was a canine professional specializing in sale and placement of German Shepherds trained as protection dogs.

2. That, on

the date of the incident, Plaintiff had an ownership interest in Personal Protection Dogs, LLC which did business as Personal Protection Dogs and Puppies.

3. That

Personal Protection Dogs and Puppies was in the business of training and selling trained dogs.

4. That

Plaintiff's encounter with Defendants and their dogs was in the course of her professional capacity for Personal Protection Dogs and Puppies.

5. That

Plaintiff has refused, despite Court orders, to provide telephone numbers and email addresses for potential witnesses Olivia Jeong and Jocelyn Lew, who are affiliated with Personal Protection Dogs and Puppies. As such, those witnesses will be precluded from testifying for Plaintiff at trial, and the Court will presume that their testimony was adverse and damaging to Plaintiff's position.

If Plaintiff elects to provide to

Defendants in writing the Court-ordered telephone numbers and email addresses for Olivia Jeong and Jocelyn Lew within 30 days of this Order, and if Plaintiff does not interfere with efforts by Defendants to contact and/or depose Ms. Jeong and Ms. Lew, the Court may consider softening or eliminating these issue sanctions. The Court advises Plaintiff that further noncompliance with court orders may result in terminating sanctions.

Plaintiff's

Motion to Set Aside Dismissal of the First Amended Complaint's First and Second Causes of Action

Plaintiff

Alla Anatolyevna Zorikova moves to set aside the Court's dismissal of the first and second causes of action in her first amended complaint under CCP sections 473(b) and 437c(f)(2). Specifically, Plaintiff seemingly seeks to vacate the Court's May 19, 2026 order granting Defendants' motions for summary adjudication as to Plaintiff's first and second causes of action for intentional tort and intentional infliction of emotional distress.

Request for

Judicial Notice

As an initial matter, Plaintiff

requests the Court take judicial notice of two court opinions. The "opinions" appear to have been cut and pasted from an unknown source. The first case, *People v. Nealis* (1991) 232 Cal.App.3d Supp. 1, involves a criminal conviction where a dog was found, under the circumstances of the case, to be a "deadly weapon" and supported a conviction for battery. While the Court can take judicial notice of this decision, it is irrelevant to deciding the instant motion. The second case, *People v. Hanif* (2007) First App. Dist., no. A115392, is an unpublished court of appeal decision. That decision cannot be cited or relied on for any purpose. (Cal. R. Ct., Rule 8.1115(a)) For these reasons, the Court declines to take judicial notice of these documents. The request for judicial notice is denied.

CCP §
473(b)

Code of Civil Procedure

section 473(b) provides, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

First, this motion is procedurally defective. A motion to vacate is typically employed when a party in default seeks to have the default set aside due to a mistake or excusable neglect. Significantly, the relief is intended where default judgment or dismissal is entered against the moving party. This is why the statute includes a requirement that a proposed pleading be filed with the motion. (See CCP § 473(b) [“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted”].)

Second, the motion also fails on the merits. Plaintiff does not show that the Court’s order granting summary adjudication of her first and second causes of action resulted from her mistake, inadvertence, surprise, or excusable neglect. Instead, Plaintiff argues that deciding the motion was premature because she did not have the opportunity to inspect Defendants’ dogs. She also argues that Defendants’ expert’s 2023 article about dog bites shows that her intentional tort claims have merit. Whether Plaintiff could have provided more or different evidence supporting her opposition to Defendants’ motion for summary adjudication does not warrant relitigating the issues on the merits now. Further, if Plaintiff felt the motion was premature due to the status of discovery, the proper remedy was to move to continue the hearing on the motion, not raise different arguments on the merits almost four months later.

CCP § 437c(f)

Plaintiff also moves for relief under Code of Civil Procedure section 437c(f)(2). That statute is inapplicable here. It provides, “A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall

proceed in all procedural respects as a motion for summary judgment. A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.”

This statute contemplates

a circumstance in which a moving party brings a second motion for summary adjudication. Here, Defendants, not Plaintiff, brought the earlier motion for summary adjudication. There is also no new motion for summary adjudication before the Court.

Disposition

Plaintiff

Alla Anatolyevna Zorikova's motion to set aside the Court's dismissal of the first and second causes of action in her first amended complaint is denied.